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2026:PHHC:087082



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CRM-M-33287-2026
Decided On: 09.06.2026**

HARJIVAN SINGH @ HARJIWAN SINGH @ JASA NANAKSARIA

....PETITIONER(S)

VERSUS

STATE OF PUNJAB

....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. Chahit Bansal, Advocate for the petitioner

SANDEEP MOUDGIL, J. (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No.10 dated 13.01.2026 under Section 25/54/59 Arms Act registered at Police Station Cheema, District Sangrur.

2. Contention

On behalf of the petitioner

Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case, as the FIR has been registered solely on the basis of secret information alleging that he was in possession of illegal arms and ammunition and had uploaded photographs with such weapons on his Instagram account. It is further submitted that no recovery has been effected

from the petitioner and he has not uploaded any such photographs on Instagram.

It is also contended that several fake Instagram accounts exist in the name of “Jassa Nanksariya,” which are being operated by different persons, and the police, without properly verifying the authenticity of the account or the photographs, proceeded to register the FIR. The petitioner further submits that he is ready and willing to join the investigation and cooperate fully with the same.

Notice of motion.

On behalf of the State

On the asking of the Court, Mr. Yatin Bunker, AAG Punjab Punjab accepts notice on behalf of the respondent–State and vehemently opposes the prayer made by learned counsel for the petitioner by stating that specific secret information was received by the police to the effect that the applicant/accused is in possession of illegal arms and ammunition and has also uploaded photographs with such weapons on his Instagram accounts, namely “jassa_nanaksariya307” and “jassa_nanaksariya”.

It is further submitted that the petitioner is involved in organized criminal activities and is in possession of illegal arms and ammunition. It is also contended that several FIRs have been registered against him at different police stations in Punjab.

It is further argued that the posting of photographs with illegal weapons on social media has created a sense of fear among the public. In view of the seriousness of the allegations against the applicant/accused, a prayer has been made for dismissal of the bail application.

3. Analysis

Having considered the rival submissions and perused the material on record, this Court finds that the allegations against the petitioner are primarily based on secret information and alleged social media activity, the authenticity of which is yet to be conclusively established during investigation. Admittedly, no recovery of illegal arms and ammunition has been effected from the petitioner so far. The petitioner has further undertaken in para 15 of the present petition that he is ready and willing to join the investigation and shall fully cooperate in its furtherance.

As far as the pendency of other cases and involvement of the petitioner therein is concerned, reliance can be placed upon the order of this Court rendered in CRM-M-25914-2022 titled as ***“Baljinder Singh alias Rock vs. State of Punjab”*** decided on 02.03.2023, wherein, while referring Article 21 of the Constitution of India, this Court has held that no doubt, at the time of granting bail, the criminal antecedents of the petitioner are to be looked into but at the same time it is equally true that the appreciation of evidence during the course of trial has to be looked into with reference to the evidence in that case alone and not with respect to the evidence in the other pending cases. In such eventuality, strict adherence to the rule of denial of bail on account of pendency of other cases/convictions in all probability would lend the petitioner in a situation of denial the concession of bail.

In the light of above, this Court has no reason to decline the present petition.

4. Relief:-

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds

to his satisfaction. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

09.06.2026

NainaRajput

Whether speaking/reasoned

:Yes/No

Whether reportable

:Yes/No